## IN THE SUPREME COURT OF INDIA

### CIVIL ORIGINAL JURISDICTION

### Writ Petition (Civil) No. 135 of 1970

**His Holiness Kesavananda Bharati Sripadagalvaru ... Petitioner**

**versus**

**State of Kerala and Others ... Respondents**

### JUDGMENT

### 13-Judge Constitution Bench · S.M. Sikri, C.J. presiding

1. The petitioner, head of the Edneer Mutt in Kerala, challenges the Kerala Land Reforms Act, 1963 (as amended in 1969 and 1971) on the ground that it violates Articles 14, 19(1)(f), 25, 26 and 31 of the Constitution.

2. The constitutional question of the widest amplitude is whether the power of Parliament to amend the Constitution under Article 368 is plenary, or whether it is limited by certain implied limitations.

3. The Court considered I.C. Golak Nath v. State of Punjab AIR 1967 SC 1643 which held that fundamental rights are unamendable, and the subsequent 24th Constitutional Amendment which sought to overrule Golak Nath.

4. After extensive review of Sankari Prasad v. Union of India AIR 1951 SC 458 and Sajjan Singh v. State of Rajasthan AIR 1965 SC 845, this Court (by majority of 7:6) holds: Parliament may amend any provision of the Constitution under Article 368, BUT cannot alter or destroy the basic structure of the Constitution.

5. The basic structure includes (illustratively, not exhaustively): supremacy of the Constitution, republican and democratic form of government, secular character, separation of powers, federal character, sovereignty and territorial integrity, unity of the Nation, and judicial review.

6. The 25th and 29th Constitutional Amendments are upheld in part. Section 25 of the Kerala Land Reforms Act survives constitutional scrutiny. Sub-article (4) of Article 31C is held unconstitutional as it ousts judicial review — which is part of the basic structure.

7. The basic structure doctrine is the most enduring contribution of Indian constitutional jurisprudence and shall guide all future constitutional amendments.